

Tentative Rulings for September 17, 2026

Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403534	WEATHERS VS PALMER	DEMURRER AS TO CAUSE(S) OF ACTION DEMURRER TO FIRST THROUGH FIFTH CAUSES OF ACTION AND QUIET TITLE

Tentative Ruling:

This Demurrer is unopposed. Accordingly, the Demurrer is sustained in all respects without leave to amend. Moving party is to give notice of ruling within 10 days of this order.

As no viable cause of action remains the matter is dismissed with prejudice.

Unless the Court receives a dismissal, the Cross-complaint of Junelyn Palmer is confirmed for CMC on 9/22/2026 with no further notice.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406038	CTR VILLAS, LLC VS TTCD INVESTMENTS, LLC	DEMURRER

Tentative Ruling:

The Demurrer is unopposed. Accordingly, the Demurrer is sustained as to all causes of action without leave to amend. Moving party is ordered to give notice within 10 days of this order. The matter is dismissed as to Defendants, Total Lender Solutions, Inc.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502387	STEWART VS CITY OF RIVERSIDE, A CALIFORNIA CHARTER CITY AND MUNICIPAL CORPORATION	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Moving party: Defendant City of Riverside
Represented by: Office of the City Attorney

Responding party: Plaintiff Donna Stewart
Represented by: V&A Law Firm

On June 3, 2024, Plaintiff Donna Stewart (“Plaintiff”) tripped and fell on a raised portion of sidewalk in front of 3541 Hoytt Street in Riverside, causing her personal injuries. On May 5, 2025, Plaintiff filed this action against Defendant City of Riverside (“City”) alleging two (2) causes of action: 1) dangerous condition of public property (against City only); and 2) negligence (against Does 25-50 only).

On August 27, 2025, City filed a cross complaint against SWH 2017-1 Borrower, LP, James Robles Rodriguez, and Deisi Udave Varela for indemnity, apportionment of fault, and declaratory relief. On February 20, 2026, the City filed a Request for Dismissal as to Rodriguez and Varela only. A trial setting conference is set for September 23, 2026.

Defendant City now moves for summary judgment. (C.C.P., § 437c.) City argues there is no dangerous condition of public property under Gov. Code § 835. City argues the alleged dangerous condition is minor, trivial, or insignificant as a matter of law pursuant to Gov. Code §§ 830 and 830.2. City relies on the City’s Public Works Street Division Supervisor, David Webb (“Webb”), who measured the uplift after the incident at less than $\frac{3}{4}$ of an inch, and reported benign surrounding conditions. City also argues it had no notice of any alleged dangerous condition under Gov. Code § 835.2 as there are no 311 reports for 3541 Hoytt, Webb personally unaware, and there are no prior injuries at that address.

In opposition, Plaintiff argues the defect is not trivial because eyewitness Arthur Arvizu (“Arvizu”) contemporaneously estimated the uplift at 1 to $1\frac{1}{4}$ inches, and aggravating circumstances, concealment by overgrown grass/weeds, a sidewalk-driveway transition point, and foreseeable weekly trash-can use, take the case out of the safe harbor. She argues constructive notice is established by the City’s own 311 history of same-mechanism tree-root uplift on the same short block (including the December 2023 across-the-street repair) combined with the City’s “expanded work zone” inspect-and-repair practice.

City replies arguing Arvizu’s unmeasured estimate cannot defeat Webb’s actual measurement. It contends Plaintiff’s admission of “no sight obstruction” in response to Requests for Admissions (“RFAs”) conclusively forecloses the concealment theory under C.C.P. § 2033.410(a). City argues that root-caused uplift could have only gotten worse between the incident and Webb’s later measurement, meaning the incident-date height was smaller than $\frac{3}{4}$ of an inch.

Analysis

I. Standard

A motion for summary judgment or summary adjudication shall be granted when no triable issue of material fact exists or the issue is one of law and the action can be terminated in favor of the moving party without the necessity of trial. (C.C.P., § 437c; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant has met his or

her burden under C.C.P., § 437c(p)(2) of showing a cause of action has no merit if that party has shown that one or more of the elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once that burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material fact exists. (C.C.P., § 437c(p)(2); *Arcienaga v. Bank of San Bernardino* (1997) 52 Cal.App.4th 213, 231.) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

II. Dangerous Condition of Public Property

Plaintiff has asserted a single cause of action for dangerous condition of public property against City. A “dangerous condition” is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830(a).) For purposes of section 835, property of a public entity means real or personal property “owned or controlled by the public entity.” (Gov. Code, § 830, subd. (c).)

Government Code section 835 states:

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

As to actual notice, this requires evidence that the public entity not only “had actual knowledge of the existence of the condition” but also “knew or should have known of its dangerous character.” (Gov. Code, § 835.2(a).) A public entity is said to have had constructive notice of a dangerous condition “only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov. Code, § 835.2(b).)

III. Analysis

A. Trivial Defect

Although generally a question of fact, a property defect is not a dangerous condition as a matter of law if the court determines, “viewing the evidence most favorably to the plaintiff, ... that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury” (Gov. Code § 830.2; see Cal. Law Revision Com. com., 32 West’s Ann. Gov. Code (2012 ed.) foll. § 830.2, p. 28, *Fielder v. City of Glendale* (1977) 71 Cal.App.3d 719, 726–727; see also *Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1104–1105 [summary judgment proper where reasonable minds could only conclude there was no substantial risk of injury, but court may not find defect trivial as a matter of law where evidence presented shows reasonable minds could differ as to whether defect presents a substantial risk of injury].) In the sidewalk-walkway context, “[t]he decision whether the defect is dangerous as a matter of law does not rest solely on the size of the crack in the walkway, since a tape measure alone cannot be used to determine whether the defect was trivial.” (*Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927.) Rather, “[a] court should decide whether a defect may be dangerous only after considering all of the circumstances surrounding the accident that might make the defect more dangerous than its size alone would suggest,” including whether the walkway had any broken pieces or jagged edges and other conditions of the walkway surrounding the defect, such as whether there was debris, grease or water concealing the defect, as well as whether the accident occurred at night in an unlighted area or some other condition obstructed a pedestrian’s view of the defect, plaintiff’s knowledge of the area, the weather at the time and whether there have been other accidents. (*Id.* at 927.)

The City has met its initial burden of establishing the defect was trivial. The City’s Public Works Street Division Supervisor, Webb, inspected the condition approximately six months after the incident and took a measurement of the lifted driveway approach in front of Hoytt Residence using a ruler, which measured less than 3/4 of an inch. The incident occurred at approximately 4:30 p.m. on June 3, 2024, during lit, daylight hours, and the weather was nice and sunny. There were no shadows casting, it had not rained on the date of the incident and the area was not wet, there were no leaves or other debris covering the area, and there were no broken, cracked, or chipped concrete pieces. The burden shifts to Plaintiffs to show that a triable issue of material fact exists.

In opposition, Plaintiff relies on Arthur Arvizu’s visual estimate that he estimates the condition to have measured between 1 to 1 1/4 inch alone is insufficient to raise a triable issue. Arvizu made no measurement and testified based on visual estimation. Though he has 45 years of experience as a plumber, he has no expertise in sidewalk measurement. His lay estimate, made without any measuring instrument, cannot overcome Webb’s actual ruler measurement taken with precision. The City’s reply argument is that the incident-date height was smaller than Webb’s later measurement, not larger, because root-caused uplift worsens over time is persuasive. Plaintiff cites

nothing that would put the incident-date height above 3/4 of an inch as a matter of fact rather than lay estimate.

Plaintiff also argues there was a sight obstruction as grass covered the area that she fell. However, in response to requests for admissions, Plaintiff admitted that “There was no sight obstruction of the SUBJECT ALLEGED DANGEROUS CONDITION at the time of the INCIDENT.” This is conclusively established against her. Read on its plain terms, sight obstruction of the [condition] means the condition itself was not obscured from view. This is precisely what plaintiff’s later concealment testimony contradicts. In *D’Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, the California Supreme Court noted that admissions of a party obtained through discovery receive an unusual deference in summary judgment proceedings, and, absent a credible explanation, prevail over that party’s later inconsistent declarations. (*Id.* at p. 22.) Plaintiff’s testimony that “The grass covered the area that I fell -- the crack in the place and covered the whole thing” directly contradicts her verified admission of no sight obstruction. The concealment theory collapses.

That the uplift sat in front of the Hoytt Residence where the concrete slab of the public sidewalk meets the concrete slab of the driveway approach and that Plaintiff was taking a trash cans to the curb of the residence for the weekly trash pickup are ordinary features of pedestrian sidewalk use, not aggravating circumstances that convert a trivial defect into a jury question. Under the holistic approach of section 830.2, location and use are relevant, but they do not overcome the combination of sub-three-quarter-inch height and benign surrounding conditions. Plaintiff fails to create a triable issue of material fact.

B. Notice

“To establish actual notice, there must be some evidence that the employees had knowledge of the particular dangerous condition in question; it is not enough to show that the public entity’s employees had a general knowledge that the condition can sometimes occur.” (*Kabat v. Department of Transportation* (2024) 107 Cal.App.5th 651, 665 [internal citations and quotations omitted].) The City has met its burden on actual notice. No one ever reported the specific condition at 3541 Hoytt to the 311 system, Webb was not aware of the uneven portion where the driveway approach meets the concrete sidewalk adjacent to 3541 Hoytt Street where Plaintiff claims her trip and fall incident occurred, Webb is not aware of any other injuries or similar occurrences that have been caused by the uneven concrete slab located adjacent to 3541 Hoytt Street, and Plaintiff herself did not notice it during a pre-move-in walkthrough. On actual notice, Plaintiff has produced no responsive evidence, and the court accepts the City’s showing.

On constructive notice, the specific dangerous condition must have existed long enough to be discovered in the exercise of due care. (*Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267. Evidence of other locations supports notice only where true commonalities exist with the specific condition, not merely a shared failure mechanism. (*Yan v. City of Diamond Bar* (2026) 119 Cal.App.5th 21, 33.)

City presents evidence that the 311 records show scattered sidewalk uplift at different, non-adjacent locations on Hoytt Street. The sidewalk at 3618 Hoytt Street is located approximately 0.1 miles (507 feet) from 3541 Hoytt Street. The sidewalk at 3515 Hoytt Street is located three (3) houses south and approximately 300 feet from 3541 Hoytt Street. The December 2023 service requests concerned both curb and sidewalk at 3540 & 3552 Hoytt due to roots from trees on parkways lifted both. While the sidewalk at 3540 and 3552 Hoytt Street is located across the street from 3541 Hoytt Street, the December 2023 repairs involved a different parkway with a different tree, not the same condition.

Plaintiff points to the City's practice that Public Works crews will organize and operate within an expanded work zone to remediate the potentially dangerous condition(s) in the area, specifically walking up and down sidewalk towards the neighboring homes approximately 30-80 feet from the area of the potentially dangerous condition. However, the expanded work zone practice is a general practice, not evidence that any crew actually inspected 3541 Hoytt's frontage. This is generalized awareness of a street-wide mechanism, not constructive notice of the specific condition.

City carried its burden to present evidence it had neither actual nor constructive notice of the dangerous condition that assertedly caused Plaintiff to fall, and Plaintiff presented no evidence in opposition that raised a triable issue of fact as to this essential element of her dangerous condition of public property claim.

Because the defect is trivial as a matter of law and the City had no notice, either ground independently supports summary judgment. Motion for Summary Judgment is granted. City to submit a proposed judgment in Defense favor within 30 days of this order. The Court will vacate the TSC calendared for 9/23/2026 and set the matter for a non-appearance OSC re receipt of proposed judgment as to Defense on 10/23/2026 at 8:30 a.m. in Dept. 6.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503513	COUNTY OF RIVERSIDE VS TSC STATION LLC	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

The Motion for Preliminary Injunction is unopposed. Accordingly, the motion is granted in all respects. Moving party is to give notice of ruling within 10 days of this ruling. Moving party is ordered to submit an order for the Court's signature.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602113	BANUELOS VS DEL REAL FOODS, LLC	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling:

The Motion for Leave to Intervene is unopposed. Accordingly, the motion is granted. The proposed order submitted has been signed by the Court.

CMC for 10/7/2026 is confirmed.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2406359	40723 MURRIETA HOT SPRINGS RD., LLC, VS TRG MURRIETA, LLC	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

C.C.P. §473 authorizes the court to grant leave to amend any pleading “in furtherance of justice, and on such terms as may be proper.” A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long

before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

While leave to amend may be denied if the proposed amendment fails to state a cause of action (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274), “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*California Casualty*, 173 Cal.App.3d 173, 281.) Leave to amend should be denied for failure to state a cause of action only when the insufficiency of the proposed amendment is established by controlling precedent and the insufficiency could not be cured by further appropriate amendment. (*California Casualty*, 173 Cal.App.3d 173, 281.)

The motion is timely. Additionally, the Court finds that the proposed First Amended Cross-Complaint will not prejudice the opposing party. The matter has yet to be set for trial and discovery remains open. **The motion is Granted.**

The Court orders the Cross-Complainant to file any First Amended Cross-Complaint within 15 days of this order. The entire matter will be set for a **Case Management Conference** on 11/19/2026 at 8:30 a.m. in Dept. 6

The **OSC** as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of all defendants pursuant to CRC 3.110(g) as to DAVID ALLEN GRABHORN, 40723 MURRIETA HOT SPRINGS RD., LLC is vacated.